NATIONAL IMMIGRATION LAW CENTER

Frequently Asked Questions on Leaked ICE Memos About Arrests and Warrants

Across the country, immigration officers are breaking into people's homes, stopping people in public because of their race, and making arrests in ways that violate the Constitution and our laws. These actions are hurting our families and communities.

Two leaked U.S. Immigration and Customs Enforcement (ICE) legal memos help explain why this is happening. The memos show that ICE leadership has given officers written instructions that encourage them to commit actions that violate the Constitution and our laws.

Under current law, federal immigration officers cannot enter someone's home without permission unless they have a warrant signed by a federal judge or if there are "exigent circumstances" (meaning a true emergency like if the officers need to act fast to prevent the destruction of evidence or prevent someone from being harmed). In a public place, federal immigration officers are supposed to have an administrative warrant – a warrant signed by an immigration officer – to arrest someone. However, the law does allow officers to arrest someone without any kind of a warrant if the officer has good reason to believe the person doesn't have permission to be in the United States *and* the person is likely to escape before the officer can get a warrant.

In the two leaked memos, ICE's Acting Director purports to give permission to immigration agents to violate these protections:

- **May 2025 memo:** This memo tells ICE officers they can force their way into someone's home without permission using only an administrative warrant, not a warrant signed by a judge, if that person has a deportation order. Absent exigent circumstances, this is likely to lead to violations of the Fourth Amendment.
- **January 2026 memo:** This memo changes the standard officers must meet to make a warrantless arrest, saying officers can basically arrest anyone they suspect to be undocumented without first getting even an administrative warrant. This also likely violates federal law.

These frequently asked questions explain what we know about these memos and why they matter.

What is the law?

The U.S. Constitution and federal law provide everyone in the U.S. protections, including non-citizens.

- Any place where you have an expectation of privacy that is reasonable and widely recognized by others is protected. Your home is protected. If you are inside your home, you do not have to open the door to immigration officers unless they show you a warrant signed by a federal judge.
- A warrant signed by ICE or the U.S. Department of Homeland Security (DHS) (called an administrative warrant) is not enough to enter your home without permission.
- Outside of your home, immigration officers generally cannot arrest you for immigration reasons without at least an administrative warrant. The main exception is if there is evidence that you do not have permission to be in the United States, and that you are "likely to flee" or escape before the officer can get a warrant.

These rules come from the U.S. Constitution, federal law, and court decisions. ICE cannot change them by writing a memo.

MAY 2025 MEMO Leaked ICE Instructions to Officers to Enter Homes Using Administrative Warrants

What does the May 2025 memo say?

The memo tells immigration officers that they are allowed to force their way into your home if:

- You refuse to open the door
- You have a final deportation order, and
- The officers have an administrative warrant, known as Form I-205, *Warrant of Removal/Deportation*

The memo says that in these cases, no warrant signed by a judge is needed. The Form I-205 is not signed by a judge. It is created and signed by an ICE agent.

To learn more about the differences between an administrative warrant and a judicial warrant signed by a judge please see Know Your Rights: Warrants.

Can ICE enter homes with only an administrative warrant ?

No. The law does not allow immigration officers to enter your home without:

- Your permission, or
- A warrant signed by a judge, or
- An exigent circumstance

This is true even if you have a final removal order.

Why can't they do that?

The Constitution gives everyone strong protections inside their home. Courts have been clear for decades: law enforcement cannot enter a home just because they want to arrest someone.

ICE paperwork is **not enough** because:

- It is signed by an ICE or DHS officer, not a judge.
- Judges are independent decision-makers and do not work for the U.S. Department of Homeland Security. They review the information and decide whether there is a good reason to issue the warrant.
- Allowing ICE to enter homes based on its own paperwork would remove an important protection meant to keep the home safe from abuses of power.

Is ICE actually entering homes this way?

Yes. There are many examples of ICE forcibly entering people's homes in recently filed litigation. You can find more information about the lawsuit here.

What if ICE entered my home this way?

If immigration officers forcibly entered your home without your consent or a warrant signed by a judge, contact NILC at democracydefense@nilc.org. This information can be important for litigation and public accountability.

JANUARY 2026 MEMO Leaked ICE Instructions to Officers to Expand Warrantless Arrests

What does the January 2026 memo say?

Federal law allows immigration officers to arrest someone without a judicial or administrative warrant if the officer has reason to believe the person is in the U.S. unlawfully and is likely to leave before the officer can get a warrant for their arrest.

The January 2026 memo allows ICE officers to broadly assume that almost any undocumented person might be likely to escape or flee. This makes warrantless arrests far more likely.

How does the memo tell officers to decide who might leave?

Federal law says immigration officers can arrest people they believe to be in the U.S. unlawfully without an administrative warrant if that person is "likely to escape." But the memo says officers can rely on very broad factors, such as:

- If you don't follow instructions, try to evade the officers, or show other suspicious behavior.
- If you could leave the area on foot, by car, or with someone else's help by the time they get a warrant.
- If an officer suspects your identity or work authorization documents are fraudulent.

Can ICE conduct warrantless arrests?

In the past, ICE has considered various factors when deciding whether a person is "likely to escape," including whether they are likely to not show up to court to see an immigration judge, if they have tried to escape in the past, and their ties to the community. The new instructions in the January memo are so broad that officers are likely to assume any suspected undocumented person should be considered "likely to escape," allowing for a warrantless arrest. Courts have been clear that any warrantless arrest must be justified.

Why is this a problem?

These instructions put **everyone at risk**:

- Anyone could be accused of being able to leave alone or with assistance.
- Anyone could be arrested based on an officer's suspicion.
- This memo gives officers more authority and power to racially profile community members.

There are already many reports and lawsuits describing ICE arresting people without warrants when they are not allowed to.

Conclusion

ICE's own written instructions show an agency pushing officers to ignore our laws and to prioritize unjustified arrests. These practices are not just minor tweaks on how ICE officers operate—they tear families apart, traumatize children, and undermine basic rights that protect everyone.

We will continue monitoring these policies, supporting accountability, and standing with impacted communities.